

Raj Kumar @ Ram Kumar Sharma v. State of U.P.

High Court of Judicature at Allahabad · Division · 2 August 2018 · Writ - C No. 25876 of 2018 · **Writ disposed; petitioner directed to apply under cl. 6.14 within 15 days.**

HEADNOTE

A writ against an electricity demand notice and recovery citation of Rs. 5,29,439 was disposed of without examining the consumer's one-time-settlement plea. The High Court accepted the licensee's submission of an alternative remedy under clause 6.14 of the Electricity Supply Code, 2005, and directed the petitioner to apply there within 15 days, to be decided by a reasoned speaking order within 30 days of presentation of a certified copy.

FACTUAL SUMMARY

The petitioner challenged a demand notice and recovery citation dated 24 February 2018 issued by the electricity department for Rs. 5,29,439. He claimed that under a one-time settlement with the department he had already made a deposit, but remained willing to pay if granted relief by easy installments. Counsel for the department submitted that the petitioner had an alternative remedy before the concerned authority under clause 6.14 of the Electricity Supply Code, 2005, and that any such application would be entertained.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

alternative remedy — installment/relief against demand and recovery

HOLDING

A writ challenging an electricity demand notice and recovery citation, and seeking installment relief, is disposed of without merits examination where the licensee points to clause 6.14 of the Electricity Supply Code, 2005: the consumer is directed to apply under that clause within 15 days, and the authority is to decide any such application by a reasoned speaking order within 30 days of presentation of the certified copy of the order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S ONE-TIME SETTLEMENT DEPOSIT DISCHARGED OR REDUCED THE DEMAND OF RS. 5,29,439

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NOT DECIDED — WHETHER INSTALLMENT FACILITY OR OTHER RELIEF AGAINST THE DEMAND AND RECOVERY CITATION SHOULD BE GRANTED ON MERITS

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